



CHAPTER cli.

An Act to confirm certain Provisional Orders of the A.D. 1911.
Local Government Board relating to Cudworth and
Liverpool. [18th August 1911.]

WHEREAS the Local Government Board have made the
Provisional Orders set forth in the schedule hereto under
the provisions of the Gas and Water Works Facilities Act 1870 33 & 34 Vict.
the Gas and Water Works Facilities Act 1870 Amendment Act c. 70.
1873 and the Public Health Act 1875: 36 & 37 Vict.
c. 89.

And whereas it is requisite that the said Orders should be 38 & 39 Vict.
confirmed by Parliament: c. 55.

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Orders as altered and set out in the schedule Orders in
hereto shall be and the same are hereby confirmed and all the schedule
provisions thereof shall have full validity and force. confirmed.

2. This Act may be cited as the Local Government Board's Short title.
Provisional Orders Confirmation (Gas) Act 1911.

A.D. 1911.

SCHEDULE.

URBAN DISTRICT OF CUDWORTH.

Cudworth *Provisional Order under the Gas and Water Works Facilities*
(Gas) Order. *Act 1870 and the Gas and Water Works Facilities*
 Act 1870 Amendment Act 1873.

To the Urban District Council of Cudworth; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Cudworth (herein-after referred to as "the Council") are the Urban Authority within the meaning of the Public Health Act 1875 for the Urban District of Cudworth in the West Riding of the County of York (herein-after referred to as "the District");

3 Edw. 7.
c. lxxv.

And whereas by the Cudworth Gas Order 1903 (herein-after referred to as "the Order of 1903") which was confirmed by the Local Government Board's Provisional Orders Confirmation (Gas) Act 1903 the Council were authorised to contract with the Barnsley Gas Company or any other company firm or person for the purchase of gas in bulk and to sell gas and to erect and provide all necessary works and apparatus for distributing and supplying gas for all public and private purposes within the District;

And whereas by virtue of the powers conferred on the Council by the Order of 1903 the Council are at present supplying within the District gas purchased by them in bulk from the Barnsley Gas Company under an agreement made in pursuance of that Order between the said Company and the Council and dated the Thirteenth day of February One thousand nine hundred and three;

And whereas the Council themselves require to construct gasworks and to manufacture gas and for those purposes to be authorised to purchase lands and borrow moneys and in pursuance of Section 161 of the Public Health Act 1875 and of the enactments therein mentioned have made application to the Local Government Board for a Provisional Order to amend or vary the Order of 1903;

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cli.]
Provisional Orders Confirmation (Gas) Act, 1911.

And whereas it is expedient that the Order of 1903 should be amended and varied in manner herein-after appearing: A.D. 1911.

Now therefore We the Local Government Board in pursuance of the powers given to Us by the Gas and Water Works Facilities Act 1870 Section 12 of the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and Section 161 of the Public Health Act 1875 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Order of 1903 shall be amended and varied so that the following provisions shall take effect:—

*Cudworth
(Gas) Order.*

33 & 34 Vict.
c. 70.
36 & 37 Vict.
c. 89.
38 & 39 Vict.
c. 55.

Art. I. This Order may be cited as the Cudworth Gas Order 1911 and the Order of 1903 and this Order may be cited together as the Cudworth Gas Orders 1903 and 1911. Short titles.

Art. II.—(1) Subject to the provisions of this Order the several words and expressions to which by the Acts in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings (unless there be something in the subject matter or context repugnant to that construction). Interpretation.

(2) The expression “residual products” includes coke culm asphaltum pitch tar oil ammoniacal liquor or any other refuse or residual matter or thing produced in or resulting from the manufacture of gas:

The expression “gasworks” includes any building structure machinery apparatus or work constructed or provided for use in or for the purposes of any process or operation connected with the manufacture or storage of gas or the manufacture conversion preparation or storage of any residual products or otherwise for any purpose of the gas undertaking or of any powers or duties of the Council under this Order or under any enactment incorporated with and applied by this Order:

The expression “the scheduled lands” means the lands described in the Schedule to this Order.

Art. III.—(1) Articles IV. and VI. of the Order of 1903 shall be revoked. Incorporation of Acts.

(2) The Council shall in relation to the purposes of the Order of 1903 and of this Order exercise and be subject to all the powers and provisions of the Public Health Act 1875 so far as the same are applicable to the purposes of the Order of 1903 and this Order but nothing herein contained shall empower the Council to acquire lands otherwise than by agreement.

[Ch. cli.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1911.

A.D. 1911.

*Cudworth
(Gas) Order.*

(3) The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking and except Section 127 of the Lands Clauses Consolidation Act 1845) and the provisions of the Gasworks Clauses Act 1847 (except Sections 30 to 38 and Sections 43 45 46 and 47 thereof) and of the Gasworks Clauses Act 1871 (except Sections 8 24 to 27 Sections 29 and 35 and Schedule B thereof) are incorporated with this Order and the said provisions of the said Gasworks Clauses Acts as so incorporated shall have effect subject to the provisions of this Order and shall apply to any gasworks constructed or provided under the authority of the Order of 1903 or of this Order.

Purchase of
further lands
for gas
purposes.

Art. IV.—(1) The Council may for the purposes of their gas undertaking purchase by agreement but not otherwise the lands described in Part II. of the schedule to this Order.

(2) Notwithstanding anything in the Order of 1903 contained the Council may use the lands described in Part I. of the schedule to this Order and the lands described in Part II. of the said schedule if and when acquired by them for all or any of the purposes of the said gas undertaking including the manufacture or storage of gas or residual products.

Purchase of
additional
lands.

Art. V. The Council may purchase by agreement and subject to the provisions of this Order any lands not exceeding two acres in addition to the scheduled lands.

Construction
of works.

Art. VI. Notwithstanding anything in the Order of 1903—

(1) The Council may construct maintain repair extend enlarge and alter any gasworks upon the scheduled lands:

(2) Subject to the provisions of this Order the Council may manufacture supply and sell gas within the district for public and private purposes and may manufacture convert or prepare and sell any residual products Provided always that the Council shall not commence to supply gas from the works authorised by this Order during the continuance of the recited agreement.

Council not
to manufac-
ture gas or
residual pro-
ducts except
on scheduled
lands.

Art. VII.—(1) The Council shall not manufacture gas nor manufacture convert or prepare any residual products on any lands other than the scheduled lands.

(2) The Council shall not begin to store gas or any residual products on any lands (other than the scheduled lands) which shall be situated within three hundred yards of any dwelling-house without the previous consent in writing of the owner lessee and occupier of that dwelling-house.

Art. VIII.—(1) The Council may by notice in writing require a consumer of gas supplied by the Council and used for the working of an engine to fix and use an anti-fluctuator in a suitable position upon the premises to which the gas is supplied and whereon the engine is in use or to keep an anti-fluctuator so fixed and used in proper order and repair at all times while in use or to repair renew or replace an anti-fluctuator which is not in proper order or repair:

A.D. 1911.

*Cudworth
(Gas) Order.*

Authorising
Council to
require an
anti-fluctua-
tor to be used
for control-
ling supply
of gas to a
gas engine.

If the consumer after any such notice as aforesaid fails to fix and use an anti-fluctuator or to keep an anti-fluctuator in proper order and repair or to repair renew or replace an anti-fluctuator which is not in proper order and repair the Council may cease to supply him with gas.

(2) The Council may at all reasonable times demand and shall thereupon have access to any anti-fluctuator fixed upon any premises to which gas is supplied by the Council and for the purpose of ascertaining whether the anti-fluctuator is in proper order or repair may take off remove test inspect and replace the anti-fluctuator such taking off removing testing inspecting and replacing to be done at the expense of the Council if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

(3) For the purposes of this Article an "anti-fluctuator" means any apparatus article or thing for the purpose of controlling and regulating the supply of gas to any engine and preventing any inconvenience or danger from the intermittent consumption of gas by the engine.

Art. IX. The quality of the gas supplied by the Council under this Order shall with respect to its illuminating power be such as to produce at the testing place herein-after mentioned when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871.

Quality of
gas supplied
by the Coun-
cil under
this Order.

Art. X. All gas supplied by the Council under this Order to any consumer of gas shall be supplied at such pressure as to balance from midnight to sunset a column of water not less than six-tenths of an inch in height and from sunset to midnight a column of water not less than eight-tenths of an inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

Pressure of
gas supplied
under this
Order.

Art. XI.—(1) For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place for testing the gas supplied under

Testing place
and burner.

A.D. 1911. this Order shall be the testing place provided by the Council under the Order of 1903 or such other testing place as may be provided by them on the scheduled lands before commencing such supply.

*Cudworth
(Gas) Order.*

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand Burner No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle Pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light.

(3) The Board of Trade may on the application of the Council or any five consumers, approve the use of any other burner, photometer or standard light that may appear to that Board to be equally or more suitable for the testing.

(4) The Council shall before supplying gas under this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

(5) Any gas examiner appointed under the Gasworks Clauses Act 1871 for the purposes of this Order may from time to time subject to the terms of his appointment at the said testing place or elsewhere not being the immediate approach to any railway bridge or railway station as and when he thinks fit test the pressure at which the gas is supplied under this Order and for that purpose may open any street road passage or place vested in or under the control of any local or road authority and two hours' previous notice shall be given to the Council of the time and place at which any testing for pressure elsewhere than at the testing place will be conducted.

Notice before
quitting
premises.

Art. XII. Twenty-four hours' notice in writing shall be given to the Council by every gas consumer before he quits any premises supplied with gas by meter by the Council and in default of such notice the consumer so quitting shall be liable to pay to the Council the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Council to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Council.

Notice to be
in writing.

Art. XIII. A notice to the Council from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it is in writing signed by or on behalf of the consumer and is left at or sent by post to the gas office of the Council.

Provision in
case of
erroneous
registration.

Art. XIV. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cli.]
Provisional Orders Confirmation (Gas) Act, 1911.

Act such erroneous registration shall be deemed to have first arisen during the last preceding quarter of the year unless it is proved to have first arisen during the current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable in like manner as gas rents are recoverable.

A.D. 1911.

Cudworth
(Gas) Order.

Art. XV. If a person requiring a supply of gas has previously quitted premises at which gas was supplied to him by the Council without paying to the Council all gas charges or meter rent or rents for gas fittings or other apparatus due from him to them the Council may refuse to furnish to him a supply of gas until he pays the amount so due.

Provision in
case of un-
paid rents.

Art. XVI. The Council may with the sanction of the Local Government Board and for the purposes of this Order (which purposes shall be deemed to include the costs payable by the Council of and in connexion with the preparation making and confirmation by Parliament of this Order) borrow money upon the security of the moneys from time to time received by them by way of revenue under the Order of 1903 and this Order and upon the security of the district fund and general district rate of the district or upon either of those securities.

Borrowing
powers.

Art. XVII. The moneys borrowed under this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Council with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned shall with reference to the moneys to be repaid be the prescribed period for the purposes of the Local Loans Act 1875 and of Articles XIX. XX. and XXI. of the Order of 1903 as applied by this Order.

Period for
repayment of
borrowed
moneys.

Art. XVIII. The provisions of Articles XVII. XIX. XX. XXI. XXII. XXIII. XXIV. XXV. and XXIX. of the Order of 1903 shall apply as if those provisions were herein re-enacted and in terms made applicable to the moneys borrowed under this Order and otherwise to the purposes of this Order.

Repayment
&c. of bor-
rowed
moneys and
costs of local
inquiries.

Art. XIX. The Council shall keep separate capital and revenue accounts of all receipts credits payments liabilities and transactions in and about the execution and in relation to the purposes of this Order and shall carry all moneys from time to time received by them on account of this Order by way of capital and revenue to their gas capital account and gas revenue account respectively.

Separate
accounts.

Art. XX.—(1) Article XXVII. of the Order of 1903 shall be revoked.

Application
of gas
revenue.

A.D. 1911.

Cudworth
(Gas) Order.

(2) All moneys from time to time received by the Council by way of revenue under the Order of 1903 or this Order shall be applied for the following purposes:—

In payment of the gas establishment charges (that is to say) of the expenses properly chargeable to revenue of constructing continuing conducting managing and maintaining the gasworks and the gas undertaking of the Council;

In payment of the interest on the moneys borrowed or re-borrowed for the purposes of the Order of 1903 or of this Order;

In providing for the discharge of any moneys borrowed or re-borrowed for the purposes of the Order of 1903 or of this Order in accordance with the provisions of those Orders or if those moneys were borrowed thereunder of the Local Loans Act 1875;

In setting apart if the Council think fit a yearly sum not exceeding ten pounds per centum of the said revenue for the purpose of forming a reserve fund to provide for any extraordinary expenditure in connexion with the gas undertaking. Provided that the reserve fund shall be accumulated by way of compound interest by investment in the manner specified in subdivision (3) of Article XIX. of the Order of 1903 as to the sinking fund until it amounts according to the market price of the investments to five hundred pounds and that whenever the reserve fund amounts according to the market price of the investments to the sum of five hundred pounds the income therefrom shall be applied in the same manner as money received by the Council by way of revenue under this Order;

In payment if the Council think fit of the expenses of executing any permanent works authorised by the Order of 1903 or by this Order.

(3) The Council shall carry to the credit of the district fund of the District so much of any balance remaining in any year of the revenue arising from their gas undertaking as may in the opinion of the Council not be required for carrying on the gas undertaking and paying the current expenses connected therewith. Provided that no part of that revenue shall be carried to the credit of the district fund when the price of gas to private consumers exceeds four shillings per one thousand cubic feet.

Charges of
carrying
Order into
execution.

Art. XXI. The Council shall not defray any of the charges and expenses of carrying the Order of 1903 or this Order into execution other than payments required to be made in respect of money borrowed

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cfi.]
Provisional Orders Confirmation (Gas) Act, 1911.

on mortgage of the district fund and general district rate out of that fund or rate when the price of gas to private consumers is less than five shillings per one thousand cubic feet. A.D. 1911.
Cudworth
(Gas) Order.

Art. XXII. Nothing contained in the Order of 1903 or this Order shall prevent the Barnsley Gas Company from continuing to supply or at any time affording a supply of gas by agreement to the Midland Railway Company for use by that Company at their Cudworth Station and premises within the district of the Council. Saving for supply of gas by Barnsley Gas Company to Cudworth Station.

The SCHEDULE above referred to.

PART I.

The piece of land belonging to the Council upon which the Council have constructed their meter-house and which they now use for the purposes of their gas undertaking being the lands mentioned in Article VII. of the Cudworth Gas Order 1903.

PART II.

A piece of land with the buildings thereon forming part of the enclosures numbered 217 and 222 on the Ordnance Map of the parish of Cudworth (scale $\frac{1}{2500}$) 2nd edition 1906 belonging or reputed to belong to Mary Edith Taylor and Henry Bradwardine Jackson adjoining the piece of land above described and containing by admeasurement 4766 square yards or thereabouts and which piece of land is comprised within an imaginary line commencing at the south-west corner of the said piece of land above described and proceeding thence in a westerly direction along the northern wall of the Barnsley Road for a distance of 120 feet or thereabouts thence in a northerly direction for a distance of 264 feet or thereabouts thence in an easterly direction for a distance of 208 feet or thereabouts thence in a southerly direction in line with the eastern fence of the said piece of land first above mentioned for a distance of 126 feet or thereabouts to the northern corner of the said fence thence continuing along the northern and western wall and fence of the last-mentioned piece of land to the point of commencement.

Given under the Seal of Office of the Local Government Board
this Nineteenth day of April One thousand nine hundred and
eleven.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

[Ch. cli.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1911.

A.D. 1911.

CITY OF LIVERPOOL.

Liverpool
(Fazakerley)
Gas Order.

Provisional Order under the Gas and Water Works Facilities
Act 1870 and the Gas and Water Works Facilities
Act 1870 Amendment Act 1873.

To the Lord Mayor Aldermen and Citizens of the City of
Liverpool;—

And to all others whom it may concern.

WHEREAS the Lord Mayor Aldermen and Citizens of the City of
Liverpool acting by the Council (herein-after referred to as "the
Corporation") are the urban authority within the meaning of the
Public Health Act 1875 for the City of Liverpool (herein-after referred
to as "the City");

6 Edw. 7.
c. cxli.

And whereas by the Liverpool Corporation (Fazakerley) Gas
Order 1906 (herein-after referred to as "the Order of 1906") which
was confirmed by the Local Government Board's Provisional Orders
Confirmation (Gas) Act 1906 the Corporation were empowered to
manufacture supply and sell gas within the township of Fazakerley
in the City;

And whereas by subdivision (1) of Article XV. of the Order of 1906
it is provided that for the purposes of the Gasworks Clauses Act 1871
the burner to be used for testing the gas supplied by the Corporation
shall be a batwing or fishtail burner consuming five cubic feet of gas
per hour;

And whereas the Corporation propose to adopt the Metropolitan
Argand Burner No. 2 as a standard burner in substitution for the
burner prescribed by Article XV. of the Order of 1906 and in pur-
suance of Section 161 of the Public Health Act 1875 and of the
enactments therein mentioned have made application to the Local
Government Board for a Provisional Order to amend or vary the Order
of 1906;

And whereas it is expedient that the Order of 1906 should be
amended and varied in manner herein-after appearing:

Now therefore We the Local Government Board in pursuance of
the powers given to Us by the Gas and Water Works Facilities Act
1870 Section 12 of the Gas and Water Works Facilities Act 1870
Amendment Act 1873 and Section 161 of the Public Health Act 1875

33 & 34 Vict. c. 70.
36 & 37 Vict. c. 89.
38 & 39 Vict. c. 55.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cli.]
Provisional Orders Confirmation (Gas) Act, 1911.

and by any other enactments in that behalf do hereby order that from A.D. 1911.
and after the date of the Act of Parliament confirming this Order the
Order of 1906 shall be amended and varied so that the following *Liverpool*
provisions shall take effect:— *(Fazakerley)*
Gas Order.

Art. I. This Order may be cited as the Liverpool Corporation Short title.
(Fazakerley) Gas Order 1911 and the Order of 1906 and this Order
may be cited together as the Liverpool Corporation (Fazakerley) Gas
Orders 1906 and 1911.

Art. II.—(1) Article XV. of the Order of 1906 shall be repealed Burner.
so far as it prescribes the burner to be used for the purposes of
the Gasworks Clauses Act 1871 and for those purposes the burner to
be used for testing the gas shall be the Metropolitan Argand Burner
No. 2 with a chimney six inches in length by one and five-eighths of
an inch in internal diameter.

(2) In making tests of the gas with the burner the gas to be
examined shall be kept alight in the burner at or about the rate of
five cubic feet per hour and with the air regulator of the burner
screwed down so as to be fully open for at least thirty minutes before
any testing is commenced.

(3) When a test of the gas is about to be made and the gas
consumption has been adjusted to five cubic feet per hour the air
regulator of the burner shall be screwed upwards until the flame
rises in the chimney as high as possible without smoking and no
more air shall be admitted by the regulator than is necessary to
accomplish this The photometrical readings of illuminating power
shall then be made in the usual manner.

(4) If the gas is so rich that it cannot be burned with the full
air supply and at the prescribed rate of consumption without the
flame tailing above the chimney the rate of consumption shall be
reduced until the flame burns as high as possible within the chimney
without smoking The rate of consumption shall then be carefully
ascertained and from this the illuminating power of the gas under
test shall be calculated by simple proportion for any reduction of
such rate of consumption below five cubic feet per hour.

Art. III. The Board of Trade may on the application of the Cor- Board of
poration or any five consumers approve the use of any other burner Trade may
that may appear to that Board to be equally or more suitable for approve other
testing Provided that any such other burner shall be the most burner.
suitable for obtaining from the gas the greatest amount of light and
be practicable for use by the consumer.

[Ch. cli.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation' (Gas) Act, 1911.

A.D. 1911.

Liverpool
(Fazakerley)
Gas Order.

Corporation
to provide
burners.

Art. IV. The Corporation shall provide all necessary burners required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

Given under the Seal of Office of the Local Government Board
this Twenty-first day of March One thousand nine hundred
and eleven.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

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